

TITLE IV-E ADOPTION ASSISTANCE AGREEMENT

CHILD: (Adoptive Name)

Last Name First Name M.I.

Date of Birth Social Security #

ADOPTIVE PARENT:

ADOPTIVE PARENT:

Last Name First Name M.I.

Last Name First Name M.I.

Social Security #

Social Security #

Street Address

City State Zip

Telephone Number

The Maryland Department of Human Resources (DHR) confirms that the above-referenced child (hereinafter "child") is eligible to receive adoption assistance for the purpose of providing ongoing financial and/or medical assistance to families who adopt children with particular special needs.

I. ELIGIBILITY FOR ADOPTION ASSISTANCE:

The child met the applicable special needs criteria as required by Federal and State statutes, including a determination by the local department that because of the following factor(s) the child cannot be placed with adoptive parents without providing assistance: (check all that apply)

- _____ between 6 and 17 years of age
 _____ physical, mental, emotional disability or disease
 _____ emotional disturbance
 _____ membership in a sibling group
 _____ recognized high risk of physical or mental disability or disease
 _____ race or ethnicity background, if combined with any one of the above conditions or factors

II. ADOPTION ASSISTANCE TO BE PROVIDED:

The amount of the adoption assistance has been negotiated based upon the understanding of DHR and the adoptive parent(s) as to the needs of the child and the circumstances of the family. The amount of the assistance may be adjusted periodically with the concurrence of the adoptive parent(s) to reflect changing circumstances.

(Choose #1 or #2)

_____ (1) Daily rate of \$_____ (monthly rate multiplied by 12 and divided by 365 days) and Medicaid/Maryland Medical Assistance

_____ (2) Medicaid/Maryland Medical Assistance only

III. MEDICAL BENEFITS TO BE PROVIDED:

During the period this Adoption Assistance Agreement is in effect, the child will also be eligible for medical benefits under the Title XIX Medicaid program in his/her state of residence.

The adoptive parent(s) shall immediately notify the local department if the child is, or becomes, eligible for private health insurance coverage other than Medicaid/Maryland Medical Assistance. Pursuant to Medicaid regulations the private insurance shall be considered the primary insurer but the availability of such health insurance coverage shall not affect the child's eligibility for Medicaid/Maryland Medical Assistance.

IV. CONCURRENT RECEIPT OF TITLE IV-E ADOPTION ASSISTANCE & SSI PAYMENTS:

If the child receives Title IV-E adoption assistance payments and Supplemental Security Income (SSI) benefits at the same time, the child's SSI payments shall be reduced dollar for dollar, thus decreasing the SSI benefit by the amount of the Title IV-E payment.

V. EFFECTIVE DATE OF AGREEMENT:

This Adoption Assistance Agreement must be signed by the local department's representative and the adoptive parent(s) prior to the finalization of the adoption or the agreement shall be void.

This Adoption Assistance Agreement shall be effective on _____.

VI. INTERSTATE PROVISIONS

If the adoptive parent(s) and the child move to another state or out of the Tribal service area, this Adoption Assistance Agreement shall remain in effect. The adoptive parent(s) will be referred by the local department to the appropriate Federal Title XIX and Title XX agencies in their new state of residence. The local department will provide the new state of residence, or Tribal service area with documentation regarding the child's eligibility for Medicaid and Title XX services as provided by the new state, or Tribal service area of residence. In order to protect the interests of the child, the local department will follow the procedures established by the Interstate Compact on Adoption Medical Assistance to facilitate the interstate coordination of benefits.

VII. NOTIFICATION RESPONSIBILITIES OF ADOPTIVE PARENTS & LOCAL DEPARTMENT:

The adoptive parents(s) shall notify the Local Department, in writing, within thirty (30) days of the occurrence of any of the following events: the adoptive parent(s) are no longer legally responsible for the child receiving adoption assistance; the adoptive parent(s) are no longer providing any financial support for the child receiving adoption assistance; the adoptive child is not residing with the adoptive parent(s); the death of adoptive child or the adoptive parent(s); a change in the address of the adoptive parent(s); any change in the educational placement status of the child receiving adoption assistance, including enrollment, withdrawal or expulsion.

The Local Department shall provide thirty (30) days written notice to the adoptive parent(s) of any proposed change in the amount, duration or frequency of the assistance stated in this Agreement.

VIII. TERMINATION OF AGREEMENT:

If the adoption assistance payments do not terminate in the first calendar year after the final decree of adoption, the adoptive parent(s) shall reapply annually to the Local Department to continue the adoption assistance.

At the time of the annual renewal the adoptive parent will provide documentation required to establish that the child remains eligible. The following criteria establish continued eligibility, and the adoption assistance agreement may be terminated upon the occurrence of any of the following circumstances:

- (1) The child reaches the age of 18;
- (2) The child reaches the age of 21, if:
 - a. the State of Maryland has determined the child has a mental or physical disability warranting the continuation of assistance beyond 18 years of age; or
 - b. the child began receiving adoption assistance payments after the age of 16 and the youth meets certain employment and educational conditions for continued assistance beyond the age of 18;
- (3) The State of Maryland determines the adoptive parent(s) are not legally responsible for the child;
- (4) The State of Maryland determines the adoptive parent(s) are not providing any financial support to the child; or
- (5) The death of the adoptive parent(s) or adoptive child.

If none of the foregoing conditions occur, this Adoption Assistance Agreement shall terminate on _____, 20_____, the child's 18th birthday.

IX. EXTENDING ADOPTION ASSISTANCE AGREEMENT TO AGE 21

The Adoption Assistance Agreement may be extended beyond the age of 18 to the age of 21 if the State of Maryland determines;

- (A) the child has a mental or physical disability warranting the continuation of assistance; or
- (B) the child began receiving adoption assistance payments after the age of 16, and
 - I. the child is completing secondary education or a program leading to an equivalent credential;
 - II. the child is enrolled in an institution which provides post-secondary or vocational education;
 - III. the child is participating in a program or activity designed to promote, or remove barriers to, employment;
 - IV. the child is employed for at least 80 hours per month; or
 - V. the child is incapable of doing any of the above described activities due to a medical condition.

X. RIGHT TO APPEAL:

The adoptive parent(s) have received notice of their right to request a contested case hearing pursuant to COMAR 07.01.04, if they disagree with a decision of the Local Department regarding the child's eligibility for adoption assistance, or the amount, duration or frequency of the adoption assistance to be provided under this Agreement. The adoptive parent(s) have the right to be represented by legal counsel at their own expense in any appeal proceeding.

ANY PERSON WHO OBTAINS, ATTEMPTS TO OBTAIN, OR ASSISTS ANOTHER PERSON IN FRAUDULENTLY OBTAINING ADOPTION ASSISTANCE TO WHICH THE PERSON IS NOT ENTITLED MAY BE PROSECUTED FOR FRAUD. THE PENALTIES FOR FRAUD INCLUDE RESTITUTION, IMPRISONMENT FOR UP TO 3 YEARS AND/OR A MAXIMUM \$1000 FINE.

ADOPTIVE PARENT'S SIGNATURE

DATE

ADOPTIVE PARENT'S SIGNATURE

DATE

DIRECTOR/DESIGNEE APPROVAL

DATE